FRANCHISE AGREEMENT

This Franchise Agreement ("**Agreement**") is executed on this _____ day of _____ 2026 and shall be effective From _____ ("**Effective Date**").

BY AND BETWEEN

JN FUEL PRIVATE LIMITED, (CIN:), a private company, incorporated under the Companies Act, 2013, having its registered office at 5M57+P49, Bidyanagar, Jalukbari, Guwahati, Assam, 781012 herein referred to as "**Franchisor"** or the "**Company**" Which shall include his legal heirs & his successors-in-interest (which expression shall unless excluded by or repugnant to the context, include its successors-in- interest and permitted assigns), (**Herein referred to as the First Party**).

And

_____ having **Aadhaar number**_____ **,** s/o _____**,**having address at _____.

Hereinafter called as **"Franchisee"** (which expression shall, unless excluded by or repugnant to the context, include legal heirs and permitted assigns), acting through himself (**Herein referred to as the Second Party**).

The "**Franchisor**" and the "**Franchisee**" are also referred to individually as "Party" and collectively as "Parties".

WHEREAS:

A. The Franchisor is in the business of delivering Fuels via Jerry Cans (JN Fuel Jerry Cans) (hereinafter referred to as the "**Business**") and providing the services under the brand name "I-FUEL" (hereinafter referred to as the "**Brand**").

B. The Franchisor, under its brand name "JN FUEL", aims to associate with the Franchisee. Franchisor and Franchisee shall be responsible for the purposes of the development of the Business within the defined Territory under the '**Company Owned and Franchise Operated ' (COFO**) business model.

C. The Franchisee has approached Franchisor representing that it has requisite permissions, approvals, qualification, competence, knowledge, resources, skills, etc. to act as an agent of the Franchisor and carry out business under the trade name, format and procedure owned and controlled by the Franchisor which the Franchiser believes to be true.

D. The Franchisee desires to associate with the Brand, pursuant to which the Franchisee has approached the Franchisor and, relying on the representations made by the Franchisor, the Franchisor has agreed to enter into an arrangement with the Franchisee and Franchisee as envisaged in this Agreement on a non-exclusive basis.

E. The Franchisee acknowledges that in addition to the service mark, JN Fuel, certain other marks or systems (i.e., SOP, uniform standard, marketing, advertising guidelines,

efficient business operating guidelines, trade secrets, design, layout, etc.), which have been developed by the Franchisor and are granted to the Franchisee on an exclusive basis. The agency is specific and limited to the Franchise named herein above and the Franchisee does not have the right and/or authority to appoint any Sub-Franchise/Agent/Agency/Co-Agent/Sub-Agent or create any further license or assign its own rights to a third party, except with prior written consent from the Franchisor.

F. The Franchisee recognises the licenses, authority, and intellectual property of the Franchisor and has undertaken, assured and guaranteed proper execution and discharge of this Agreement.

G. The Franchisee agrees to maintain JN FUEL as its exclusive Franchisor in the agreed territory and will not enter into same/similar business of doorstep HSD, MS delivery activities with JN Fuel

H. The Franchisee hereby acknowledges the efforts and investments made by the Franchisor and has therefore agreed to comply with special conditions laid down by the Franchisor so that the full benefit of such investments can be derived by both the Parties.

I. The Franchisor, on the basis of the representations and warranties given by the Franchisee and the covenants contained herein, agrees to license to the Franchisee, on a restricted, limited, and non-exclusive basis, to use its technology and intellectual property
- trademarks, service marks, logos, slogans, designs, and other branding indicia, operating manual and proprietary software systems; technical know-how; guidance; operational support; technical support; sales support; procedures; use of its business model; use of the JN FUEL App., etc., and run all activities under the brand name, '**JN FUEL**'.

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL COVENANTS, REPRESENTATIONS, WARRANTIES AND AGREEMENTS SET FORTH HEREIN AND FOR OTHER GOOD AND VALUABLE CONSIDERATION, THE RECEIPT AND SUFFICIENCY OF WHICH IS HEREBY ACKNOWLEDGED, THE PARTIES HERETO AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATIONS

1.1 In this Agreement, unless the context otherwise requires, the following words shall have the meaning prescribed thereto when used in capitalised form elsewhere in this Agreement:

1.1.1 "**Agreement**" means this Franchise Agreement executed between the Parties.

1.1.2 "**Applicable Law**" means all local laws applicable to the Franchise business, including Acts, statutes, by-laws, state laws, rules, regulations, orders and ordinances together with all codes, guidelines, policies, notices, directions, directives and standards of any governmental authority which are legally mandatory in nature affecting obligations of

either of the Parties.

1.1.3 "**Approvals**" means any approval, consent, permit, license, authorisation, certificate, exemption, filing, registration, ordinance, guidelines, policies, notices, direction, directives and standards of any Governmental Authority which are legally mandatory in nature and/or other requirements, which are required under applicable laws.

1.1.4 "**Business**" shall mean and include the establishment and operation in an earmarked Location City or Location, as may be apprised by the Company to the Franchisee, for providing HSD, Diesel Light, and MS Delivery services through JN Fuel's Jerry Cans.

1.1.5 "**Confidential Information**" means any and all documents, data, or information related to the Franchisor's business which have been provided to Franchisee or the Franchisee has gotten to know such information during its association with the Franchisor, including, but not limited to, all tangible, intangible, visual, electronic, present, or future information such as (a) financial information; (b) technical information, including but not limited to research, development, procedures, data, designs, and technical know-how; (c) business information, including but not limited to business, operations, planning, marketing interests, and other information disclosed by Franchisor to the Franchise: (d) personal information of any customer(s) all information or data which the Franchise have access in connection with performance of the present agreement, whether before or aVer execution of the present agreement all confidential or proprietary concepts, documentation, reports, lists, files, data, specifications, so aware, source code, object code, flow charts, data bases, data files, inventions, information, know-how and trade secrets, whether or not patentable or copyright; (e) this Agreement and its financial terms; and (f) research and development activities and findings, ideas, concepts, know-how, other non-generic information whether tangible and/or intangible, written and/or oral relating to any released or unreleased concepts, ideas, projects, and services, marketing or promotion of Products/services, whether or not labelled as confidential when delivered by the Company.

1.1.6 "**Competitive Business**" means any business that offers (or grants Franchises to others to operate a business that offers or provides) the same as or similar to those provided by the Company or in which Confidential Information or Trade Secrets could be used to the disadvantage of the Company, or its other Franchisees; provided, however, that the term "Competitive Business" shall not apply to any business operated by the Company or by the Franchisee under any other agreement with the Company.

1.1.7 "**Commencement Date**" means the date of commencement of the operation of the services mutually agreed between the Parties.

1.1.8 "**Franchise**" means the non-exclusive right granted to the Franchisee by the Company to use the System and the Marks and undertake the actions as contemplated in this Agreement.

1.1.9 "**Force Majeure**" means acts of God (such as tornadoes, earthquakes, hurricanes, floods, fire, lightning, landslide or other natural catastrophe); strikes, lockouts or other industrial disturbances; war, terrorist acts, riot or other civil disturbance; epidemics, pandemic; or other similar force, causes, events, situations or happenings which Franchise could not by the exercise of reasonable diligence have avoided or which is or

are beyond Franchise's control; provided however, that neither an act or failure to act by a governmental authority, nor the performance, non- performance or exercise of rights under any agreement with Franchise by any lender, landlord, or other person shall be an event of Force Majeure hereunder, except to the extent that such act, failure to act, performance, non- performance or exercise of rights results from an act which is otherwise an event of Force Majeure. For the avoidance of doubt, Franchise's financial inability to perform or Franchisee's insolvency shall not be an event of Force Majeure hereunder.

1.1.10 "**Intellectual Property Rights**" means all intellectual property rights owned from the date of incorporation, at present or in the future to be owned by Franchisor including but not limited to the logo, name, marks, characters, artwork, designs, trade names, trademarks, or service marks, marketing material that is intangible or other electronic form or medium, copyright, technical know- how, all system and process specific information, domestic or foreign letter patent, patent, patent application, patent license, inventions, invention disclosures, so aware or e usage rights, formulae and processes, proprietary data and databases and all other similar items of intellectual property, whether registered or not, including any rights created by use there of used or permitted to be used by Franchisor.

1.1.11 "**Location**" means the territory defined and agreed as per the appointment letter or which may be apprised to the Franchisee from time to time. The Franchisee acknowledges and understands that such Location, may be changed in the sole discretion of the Company, which may be apprised to the Franchisee in writing in advance.

1.1.12 "**System**" means the uniform standards, methods, procedures, designs including the Jerry Cans design, transportation systems, interior designs and specifications developed by the Company and as may be added to, changed, modified, withdrawn or otherwise revised by the Company, in its sole discretion, for the operation of the Jerry Cans and its office, including the (i) know-how and business methods relating to the presentation, marketing and sales of Jerry Cans; and (ii) the elements which create the physical appearance, both internal and external, of a fuel station/ transport vehicle, including the configuration of the showroom lay-out, wall units, shelving, lighting, audio-visual systems, two- and three- dimensional decorative and graphic elements, interactive elements, signage, fascia, color schemes, furnishings and fixtures, finishes, and equipment; and (iii) the overall look and feel of a Jerry Cans delivery system.

1.1.13 "**Trade Secrets**" means information in any form (including, but not limited to, technical or non-technical data, formulas, patterns, compilations, programs, devices, methods, techniques, drawings, business discussions between the Parties, processes, financial data, financial plans, product plans, System, passwords, lists of actual or potential customers or suppliers) related to or used in the Company that is not commonly known by or available to the public whether or not such information: (i) derives economic value, actual or potential, from not being generally known to and not being readily ascertained by proper means by, other persons who can obtain economic value from its disclosure or use; and (ii) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.

1.1.14 **"Term"** means the period of 2 (two) years from the date of executing this agreement

which can be extended for up to 2 (two) years by the official permission of the Franchisor.

1.1.15 "**Territory**" means Areas of operation, assigned PIN codes/radius. The area thus allocated will be proximal to the Supply Location. These will be monitored using the Geo-fencing facility of the app and through the movement of the allocated Mobile Dispensers.

1.1.16 **"Enrolment"** means formal acknowledgement of LOI/Email Confirmation towards scope of investment and joint ownership.

1.2 INTERPRETATION

1.2.1 Words elsewhere defined/explained in this Agreement shall have the meaning so ascribed;

1.2.2 Words denoting singular shall include plural and vice versa;

1.2.3 Both Parties have had the opportunity to have this Agreement reviewed by their attorneys; and

1.2.4 The headings are inserted for convenience only and shall be ignored while construing this Agreement.

2. TERM AND LOCK-IN PERIOD OF THE AGREEMENT

2.1 Subject to the provisions mentioned herein, the term of this Agreement shall commence from the Effective Date and shall continue in force and effect for a period of 2 (two) years.

2.2 The Term of this Agreement can be extended for up to 2 years, in the sole discretion of the Company, and contingent on the execution of a new contract and payment of the new applicable fees.

3. PURPOSE AND SCOPE

3.1 The Franchisor hereby appoints and grants agency of JN Fuel's Jerry Cans (hereinaVer referred to as the "**JN Fuel's Jerry Cans**") to the Franchisee to act on behalf of and in terms of this Agreement for ensuring supply of the fuel within the Territory on the terms and conditions as specified herein and on the directions/guidelines to be issued by the Franchisor From time to time while ensuring strict adherence to and compliance of all applicable legal and PESO provisions and also ensuring all fire/ explosive safety norms (including but not limited to the technology required, with due diligence, care and caution through duly skilled employees duly equipped with PPE kits and all other safety measures. The employees to be deputed along with the I-Fuel's Jerry Cans shall be well-trained to handle hazardous material and also to handle any kind of emergency situation.

3.2 The Franchisor grants to the Franchisee, and the Franchisee undertakes and accepts, upon terms and conditions herein contained, a limited, non-assignable, non-exclusive and non-

transferable Franchise, and the rights to operate the JN Fuel's Jerry Cans Intellectual Property, Sales Support, Technical Know-How and Support. The Franchisee shall comply with the JN Fuel's Jerry Cans assignment and operation guidelines.

3.3 The granting of Franchise under this Agreement, is subject to the Franchisee obtaining the trade license on its own. JN Fuel shall not be responsible for obtaining the trade license or any other retail license which is required to run the business. In case the Franchisee fails to obtain the trade license, JN Fuel shall be entitled to terminate this Agreement or any other business being conducted between the Parties.

3.4 The Territory assigned to the Franchisee by the Franchisor is non- exclusive; however, the Franchisee will be the preferred choice to offer deliveries to any customer within its Territory. The Franchisee has to ensure that the transaction thus undertaken is within the assigned territory.

3.5 The Franchisee shall have a right of first refusal to accept the expansion of JN Fuel's Jerry Cans within its Territory. If the Franchisee does not accept the offer within a reasonable time, prescribed by the Franchisor from time to time, in such an event the Franchisor shall be at its absolute discretion either to deploy the JN Fuel's Jerry Cans directly or to appoint a new Franchisee. However, Franchisee shall have the right, claim, and reservation in this regard through mutual discussion with the Franchisor. The decision of the Franchisor in this regard shall be final, binding and conclusive.

3.6 The Brand name and logo "JN FUEL" are completely owned by the Franchisor. The Franchisee does not have any right over the same apart from or in any manner other than the arrangement as per the terms and conditions of the present Agreement. The Franchisor have the right to get new brands registered under the name of the company and undertake activities under that brand name as well,

3.7 The Parties agree to collaborate as per the terms and conditions of the present Agreement for the purpose of growth and expansion of the Brand Name and Business of the Franchisor within the allocated territory.

4. CONDITIONS FOR GRANT OF FRANCHISE

4.1 The Franchise is granted to the Franchisee on a non-exclusive, non-assignable, non-transferable Franchise rights to sell/distribute the fuel via JN Fuel's Jerry Cans with the name and style of JN Fuel and/or such other brand name as may be intimated by the Company from time to time for the Territory to the end-users.

4.2 The Franchise should be used only for captive use.

4.3 The Franchisee shall be responsible for the safety and security of the JN Fuel's Jerry Cans.

4.4 The Franchisee shall not represent or imply to the third parties that (a) the Franchisee is an agent of the Company, (b) the Franchisee has been authorized to make contract, agreement, warranty or representation on behalf of the Company, or (c) to create any obligation, express or implied on Company's behalf. During the Term of this Agreement, and any extension or renewal hereof, the Franchisee shall hold itself out to the public only as a Franchisee of the Company operating the Franchise Business.

4.5 Any adulteration in fuel, charging high prices, filling of HSD, MS or any other fuel in Jerry Cans from other location as decided would be considered as a material breach of this Agreement.

4.6 Any breach of this Agreement would automatically render this Agreement null and void, and the Franchisor shall have the right to forfeit the balance amount paid by the Franchisee, and further, the assets including but not limited to JN Fuel's Jerry Cans provided by the Franchisor shall be required to be returned by the Franchisee within 7(seven) days of providing notice to the Franchisee.

4.7 The Franchisor shall be entitled to take appropriate action available under the applicable law including but not limited to filing of civil action and suit against the Franchisee. JN Fuel's Jerry Cans will be sold by the Company at a price decided from time to time.

4.8 PESO and other requisite licenses will be obtained in the name of JN

FUELAVer obtaining all required license, JN FUEL sell the JN Fuel's Jerry Cans to Franchisee lock-in period of 2 years further extendable by upto 2 years under same or revised terms & conditions as per the Franchisor's sole discretion.

4.10 JN Fuel's Jerry Cans with JN FUEL branding will be sent to the franchisee address, where it will conduct the HSD, Diesel Light, and MS delivery business under the brand name of I-FUEL for the term mentioned herein.

4.11 Invoicing for this business will happen through JN FUEL.

4.12 Original registration documents for JN Fuel's Jerry Cans being used for business will be kept with JN FUEL. Duplicate copies will be issued to the Franchisee to be kept in the running trucks carrying I- Fuel's Jerry Cans.

4.13 The franchisee would purchase the Fuel only through the Franchisor and if the Franchisee commits any breach of this clause, then the Franchisor shall issue warnings. Post, 2 the Franchisor shall be entitled to put a penalty over the Franchisee in its sole discretion. and in case of continuous defaults, termination of agreement and cancellation of license and blacklisted for future engagement with the

4.14 The Franchisee will assign & surrender their petty dealer license in original with JN FUEL for the entire term of the contract and shall use that license for the sole purpose of supplies for JN FUEL.

4.15 That Franchisee will ensure quality and quantity of fuel supplied to end user and there shall be no adulteration in the fuel supplied; any adulteration found or complained against would amount to breach of this contract.

4.16 That Franchisee will sell the products at the same rate periodically (Daily/weekly/Fortnightly/Monthly) decided/notified and intimated by JN FUEL and shall not indulge in overpricing of the same.

4.17 Working capital and monthly operational costs as per Annexure 3 for running this HSD, Diesel Light, and MS delivery business will be managed and funded by the franchisee.

5. FRANCHISEE RESPONSIBILITIES

The Franchisee shall be responsible for the following:

5.1 **Repair and Maintenance:** All costs related to repair and maintenance of vehicles/equipment shall be borne by the Franchisee.

5.2 **Tax and Insurance:** The Franchisee shall pay all applicable taxes, insurance premiums, and other statutory dues.

5.3 **RTO Compliance:** The Franchisee shall ensure compliance with all RTO regulations and bear associated costs.

5.4 Territory: Preferred Territory of business operation, as per the mutual discussions, is **Assam** State and can be expanded to other states only by the Franchisor based on other business opportunities.

6. FINANCIAL UNDERSTANDING (Commission, Commercial Terms and Invoicing Process)

6.1 The Franchisee shall be entitled to such agency commission as may be communicated by the Company from time to time, subject to applicable taxes and TDS deduction.

6.2 The Franchisee shall purchase all Consumables, spare parts, equipment, tools, machines, gadgets, kits, fire safety equipment, pipes, etc. as may be required to perform day-to-day duties under this Agreement only from the suppliers/dealers approved by the Franchisor.

6.3 The Franchisee may procure orders/proposals/business deals for and on behalf of the Franchisor and it shall be at the sole discretion of the Franchisor to accept or reject any such orders/proposals/ business deals.

6.4 Invoicing

Invoicing process to be followed as mentioned: (as particularly mentioned in **Annexure -3**)

6.4.1 The invoicing against all Supplies made by the Franchisee to the end customer placing their orders on the JN FUEL App or directly with the Franchisor, as the case may be, shall be exclusively raised by the Franchisor.

6.4.2 The Franchisee shall not be entitled to enter into any kind of financial transaction with the customers of the Franchisor, in any manner, until specific written instructions by an authorised representative of the Franchisor are issued in this regard. Any such activity will be treated as a material breach and the Franchisor shall be entitled to terminate this Agreement and appropriate penalty will be levied to Franchisee (Security Deposit).

6.4.3

6.4.4 The payment made to the Franchisor in any aspect, is non-refundable.

7. REPRESENTATIONS AND WARRANTIES

7.1 The Franchisee has approached the Franchisor to act as a Franchisee of the Franchisor strictly in accordance with an absolute adherence to each and every term and condition of this Agreement and instructions, i.e., the Standard Operating Procedures ("**SOP**s" as entailed under

Annexure 6 herein) and Operations Manual issued/revised From time to time. The Franchisee undertakes to act upon express/ specific authority granted in writing and undertakes to not presume any implied authority.

7.2 The Franchisee represents that it has complete, valid and subsisting power and authority, statutory documentation, permissions, approvals, skills, etc. to enter into this Agreement and to discharge the duties/obligations under this Agreement. The Franchisee assures that it shall not let any such documents, permission, approval, etc. to lapse during the Term of this Agreement and its renewal hereof. Further, in case the Franchisee is a corporate person, then the Franchisee represents and warrants that the execution of this Agreement shall not violate or default its articles of association and/or the bylaws or any other agreement, judgment, order, decree to which the Franchisee is subject, and do not and shall not conflict with.

7.3 The Franchisee represents that he/she shall strictly adhere to and comply with each and every provision of all Applicable statutory and local laws, rules and regulations including but not limited to the provisions of the Petroleum and Natural Gas Regulatory Board Act, 2006, Petroleum Act, 1934, the Petroleum Rules, 2002, Motor Spirit And High Speed Diesel Order, 2005, Petrol and Natural Gas Rules 1959, the Legal Metrology Act 2009, Essential Commodities Act 1955, with all rules, regulations, etc. named thereunder.

7.4 The Franchisee represents that he/she shall strictly adhere to and ensure compliance of all safety and security measures regarding fire, explosives, etc.

7.5 The Franchisee represents that he/she shall not transgress the scope and purpose of this Agreement and acknowledges the non-ownership in the Intellectual Property, Consumables, Sales Support, Technical Know-How and Support, Territory, etc. of the Franchisor.

7.6 The Franchisee acknowledges the limited, non-assignable, non- exclusive and non-transferable agency assigned to it by the Franchisor to act on behalf of the Franchisor to transport and deliver Supplies within the Territory assigned to it under the brand of 'JN FUEL'.

7.7 It shall at all times conduct its business in an ethical manner in compliance with all applicable laws and with the Company's corporate policies. Without limiting the foregoing, the Franchisee shall not, directly or indirectly through a third party, offer, pay, promise, or authorize the offer or payment of, any financial or other benefit or advantage, or anything of value, to any person for any unethical purpose or indulge in any form of corruption: (i) to improperly obtain a business advantage or to obtain or retain business, (ii) to induce the person to perform any function or activity improperly, or to provide a reward for doing so, (iii). to corruptly influence, directly or indirectly, any act or decision of any government official, employee, candidate for public office, or political party.

7.8 The Franchisee acknowledges his/her responsibility for ensuring safety, security, fitness of the Supplies. The Franchise assures that it, in its personal capacity, shall not store, sell, distribute, supply, deliver, handle, etc. the Products.

7.9 The Franchisee understands and acknowledges his/ her responsibility and liability for ensuring safety, security, fitness, maintenance, day-to-day operational cost and all other requirements of the JN Fuel's Jerry Cans licensed to it by the Franchisor.

7.10 The Franchisee assures that they shall take all measures to ensure that there is no kind of damage, leakage, spilling, etc. from the JN Fuel's Jerry Cans licensed by the Franchisor.

7.11 The Franchisee assures the Franchisor that there will be no reconstitution of the firm/ Board without the prior consent of the Franchisor.

8. PROVISIONS RELATING TO I-FUEL'S JERRY CANS

8.1 The Franchisor will obtain all requisite registration, licenses, permissions, approvals, permits, as may be required for the JN Fuel's Jerry Cans for the purpose of supply and perform all necessary acts till the handing over of the JN Fuel's Jerry Cans to the Franchisee.

8.2 The Franchisee shall be liable to bear the cost of all traffic and/ or other challans, penalties, violations, etc. committed by the Franchisee and/or its employees without putting any kind of obligation/claim over the Franchisor.

8.3 The Franchisee agrees to accept and acknowledge in writing the receipt of the JN Fuel Jerry Cans, and such acknowledgement shall constitute proof of acceptance of JN Fuel's Jerry Cans. As soon as the JN Fuel Jerry Cans are handed over to the Franchisee, the day- to-day safety, security, etc. of the JN Fuel Jerry Cans shall be the responsibility of the Franchisee. The Franchisor may facilitate the Franchisee regarding fitness, license, permits, or other requirements with regard to the JN Fuel's Jerry Cans so licensed at the cost of the Franchisee.

8.4 All maintenance, repair work, etc. of the JN Fuel's Jerry Cans sold to the Franchisee will be done with prior intimation and as per specific instructions from the Franchisor and will either be conducted in the workshops approved by the Franchisor or at the sole expense of the Franchisee.

8.5 The Franchisee agrees, undertakes and acknowledges that he shall not create a charge or lien on the JN Fuel's Jerry Cans handed over to him for the discharge of services as mentioned herein.

8.6 The Franchisee shall ensure that each JN Fuel's Jerry Can operated pursuant to this Agreement is, at all times, manned by at least one (1) duly trained driver and one (1) attendant, in compliance with Applicable Law, and is equipped with all prescribed safety gadgets and equipment.

8.7 The Franchisee shall ensure that all filling pipes, discharge faucets, and dip pipes are securely closed at all times. During unloading operations, the Franchisee shall ensure that the vehicle carrying the Fuel's Jerry Cans is adequately secured in accordance with the Franchisor's standard operating procedures ("**SOPs**"), including the mandatory use of wheel chocks, and shall comply with all other SOPs issued by the Franchisor from time to time.

8.8 The Franchisee shall continuously monitor and track the route of each JN Fuel's Jerry Cans during delivery. In the event of any deviation from the designated route or any suspicious or unexpected conduct by the driver or attendant, the Franchisee shall immediately notify the Franchisor. Without prejudice to the foregoing, if any I-Fuel's Jerry Cans become untraceable for a period exceeding thirty (30) minutes, the Franchisee shall forthwith intimate the Franchisor of the same.

8.9 The Franchisee shall ensure that any vehicle carrying the JN Fuel's Jerry Cans and/or Supplies is not parked on any public road, in congested areas, or within a twelve (12) meter radius of any source of fire.

8.10 Such vehicles shall be parked only in designated and approved locations, strictly in accordance with Applicable Law and the Franchisor's SOPs, without any lapse or negligence on the part of the Franchisee.

8.11 The Franchisee shall ensure that no article or substance capable of causing fire or explosion is carried on or in the I-Fuel's Jerry Cans. The Franchisee shall further ensure that no person smokes while operating, attending to, or being in the vicinity of the JN Fuel's Jerry Cans.

8.12 The Franchisee shall ensure that each I-Fuel's Jerry Cans is maintained in its original condition as supplied by the Franchisor, and no alteration, modification, addition, installation of any device, branding, lighting, or beautification shall be undertaken without the prior written consent of the Franchisor.

8.13 The Franchisee shall strictly comply with all applicable guidelines issued by the Petroleum and Explosives Safety Organisation ("**PESO**"), as more particularly set out in Annexure 5, as may be amended from time to time

9. **PROVISIONS RELATING TO EMPLOYEES**

9.1 The Franchisee shall appoint duly qualified, skilled, competent, physically and mentally fit persons to discharge duties under this Agreement (Driver and Helper) within 45 days of this Agreement's sign-off. The persons so engaged to perform duties at Franchise location under this Agreement shall be deemed as employees of the Franchisee. Franchisor must approve recommended profiles by the Franchisee for their selection. The final selection of the driver and helper (optional) will be a joint decision of both parties.

9.2 The Franchisee shall be liable to pay the salary, allowances, bonus prerequisites, etc. of the Driver and Helper on a monthly basis.

9.3 The Franchisee shall be responsible for compliance with all labour laws of the respective state and other applicable legal provisions regarding the employees deployed at the Franchisee location. The Franchisee undertakes to adhere to employee management guidelines stipulated by the Franchisor.

9.4 The Franchisor shall be responsible for training of the employees (Driver and Helper).The Franchisor shall impart requisite knowledge and awareness to employees regarding the applicable rules, regulations, legal provisions, safety and security guidelines, etc. The Franchise shall observe and implement the Franchisor's SOPs in this regard as may be issued/revised ßom time to time

9.5 The Franchisee shall ensure that all the persons employed hold appropriate driving license for heavy transport/goods vehicle bearing hazardous goods endorsement and other such licenses, permissions, etc. so as to fully and effectually discharge duties in terms of this Agreement. The Franchisee shall also ensure that all such licenses, permissions, etc. subsist and remain valid

during the Term of this Agreement.

9.6 The Franchisee shall be responsible for ensuring that all its employees wear proper uniform, safety gears/gadgets, kits, etc. while performing duties as per the Franchisor's SOPs. The Franchisee shall implement the Franchisor's SOPs – as per **Annexure No. 4** in this regard as may be issued/revised from time to time.

9.7 The Franchisee shall immediately inform to the Franchisor if any employee is found to be unskilled, incompetent, physically or mentally unfit, negligent, careless, disobedient, habitual violator of traffic rules, habitual violator of security and safety norms, etc. on which Franchisor can initiate necessary action to the extent of termination.

9.8 The Franchisee undertakes to make surprise check/visit and audits at the delivery sites of the Supplies in order to ensure that the crew are strictly adhering to all guidelines, rules, regulations, etc. The Franchisee is bound to submit a monthly report in this regard to the Franchisor.

9.9 The Franchisor shall be entitled to conduct audits, in the sole discretion of the Franchisor, on the Franchisee to ensure adherence on agreed business guidelines.

9.10 The Franchisee shall contribute to running day to day operations and shall issue directions or instructions or guidance to drivers, employees, or representatives of the Franchise to perform operations only in the interest of furthering the Business. Any instructions which do not adhere to the stipulated SOPs, should not be given by the Franchise.

10. PROVISIONS RELATING TO FIRE SAFETY AND LEGAL COMPLIANCES

10.1 The Franchisee is duty-bound to discharge its duties under this Agreement diligently and carefully vis-à-vis the storage, handling – loading and unloading, and delivery of Supplies. The Franchisee shall ensure all fire safety and security measures as also precautions against electrical hazards being followed. The Franchisee shall strictly observe the SOPs issued by the Franchisor and PESO (as provided in Annexure -5) in this regard.

10.2 In the event of occurrence of accident/fire, the Franchise shall immediately intimate the Franchisor about such accident and shall strictly comply with the instructions/directions of the Franchisor in this regard. The Franchisee shall provide a detailed written accident report to the Franchisor detailing damage to JN Fuel's Jerry Canss, if any, injury to any employee, any injury to any third party, nature of injury suffered, any spillage/leakage of fuel tank, etc. without any delay.

10.3 The Franchisee shall take complete ownership of expenses for treatment of any injuries to crews / third parties and repair reimbursement to the franchisor of any damage to JN Fuel's Jerry Cans, vehicle and loss of quantity of HSD, Diesel Light, and MS due to the reasons mentioned in clause no 9.2, which are additional and not covered under the I-Fuel's Jerry Cans insurance and Franchisor employee insurance.

10.4 The Franchisee is responsible/liable for the accident expenses (which are not covered under insurance for franchisor employees and JN Fuel's Jerry Cans, including third party coverage), caused by the employees of Franchisee deployed at the Franchisee location during transportation of Fuel or otherwise and Franchisor is not liable to pay the compensation to the

person/s or any animals who suffered or died due to said accident. It is also further made clear that the Franchisee is liable/responsible to pay the compensation if any ordered by the Court or any authority in MVC cases or in any other proceedings.

10.5 Before undertaking each delivery, the Franchisee shall ensure that all fire safety equipment; fire extinguishers, gadgets, etc. are duly placed in the JN Fuel's Jerry Cans and are functional and not expired.

10.6 The Franchisee shall ensure that all requisite declarations shall be duly, properly and correctly mentioned on I-Fuel's Jerry Cans during each delivery of supplies. Weights & measures ßom the Metrology Department stamping done to the Meters (Flow Meter or DU) fitted in the Mobile Dispenser, should not be tampered aVer the stamping & sealed by the concerned authorities

10.7 Before delivering Supplies/ unloading the JN Fuel's Jerry Cans, the Franchisee shall ensure that the delivery site is a secured location, having all safety, security and fire extinguishing equipment and the place is duly licensed as per law to receive such deliveries.

10.8 The Franchisee shall ensure Supply is made only between 7 A.M and 9 P.M I.S.T. and not beyond.

11. FRANCHISEE'S OBLIGATIONS

11.1 The Franchisee shall not undertake, do or perform any act or omit to do any act that may adversely affect the Business, reputation and Brand name of the Franchisor in any manner.

11.2 The Franchisee will maximize efforts to develop the Business and maintain the image, identity and reputation of the Franchisor.

11.3 Franchisee will be fully responsible for collecting the sale amount from the customers.

11.4 Franchisee should enhance and promote the intellectual property, goodwill and reputation of the Business at all times.

11.5 The Franchisee may also advertise and promote the Business in accordance with the directions, requirements and specifications of the Franchisor post approval from the Franchisor from time to time.

11.6 The Franchisee hereby undertakes to supply the Franchisor with all information concerning office operation, enabling evaluation of the quality of business management, as well as the financial reports required for effective management of the Business from time to time. The Franchisee will allow the Franchisor and/or its Representatives or Field Consultant fee access to the Operation Location and permit examination of the relevant documents at any official time.

11.7 The Franchisee should only use the allocated technology, platform and enablers as provided by the Franchisor to operate the business.

11.8 List of Identified Customers has to be provided by the Franchisee to effect the procurement ßom

the allocated Supply Location

11.9 The Franchisee shall comply with applicable Fiscal Laws including TDS, applicable GST and Excise Duty as applicable.

11.10 Franchisee is liable to provide replacement/ alternate arrangement of Driver and Cleaner at Franchisee location in case of prolonged absenteeism due to illness/personal exigencies or any unforeseen circumstances

11.11 Consideration

The Franchisor shall be liable for a payment of commission (as per the rates mentioned in the Annexure – 6) as per the below clause with respect to the Franchises responsibilities**:**

a. Time and Effort towards JN FUEL Sales & Business development in the allocated territory.

b. Commit to a targeted minimum sale of 3,500 liters of Fuel per month irrespective of the Fuel's Jerry Cans capacity

c. Days of the month considered 28 days on average each month: Total tenure–48Months. The product is procured by pre-payment of RSP by Franchisee or buyer to the Franchisor only.

d. The Franchisee is solely responsible for payment of the Selling value of the Product or Invoice value of the quantity delivered to the buyer.

12. FRANCHISOR'S OBLIGATIONS

12.1 The Franchisor shall undertake to conclude the operational activities for the purpose of the Franchise Business from the Commencement Date.

12.2 The Franchisor shall designate the Fuel Supply Point which can either be Oil Marketing Company's depot or a Retail Outlet, as may be communicated by the Franchisor to the Franchisee from time to time.

12.3 The Franchisor shall make requisite payments to the Franchisee as agreed in the Investment Consideration.

12.4 The Franchisor shall be liable towards the reconciliation of the accountant's timely payments to the Franchisee.

12.5 The Franchisor shall be responsible for the training of the crew members and the Franchisor shall impart requisite knowledge and awareness to its Drivers and Helpers regarding the applicable rules, regulations, legal provisions, safety and security guidelines, etc.

12.6 The Franchisor shall provide a copy of the Operations Manual and a replacement copy of the Operations Manual when it is updated during the course of this Agreement.

12.7 The technology & platform required to run the day-to-day operations of the Business will be provided by the Franchisor

12.8 The Marketing activities related to promoting the Brand with lieu of commencement of Business will be the Joint responsibility of Franchisee and Franchisor.

12.9 Franchisor is responsible to obtain requisite statutory approvals and

12.10 Licenses for operation of the Mobile dispensers ßom PESO and calibration certificate for dispensing of fuel ßom Department of Legal Metrology and any other certificate required for dispensing of fuel. They shall comply with all other statutory requirements including VAT, GST, Motor Vehicle Act, etc. as applicable under State/Central Govt. regulations. Further, provisions of Essential Commodities Act, Control Orders and other statutory requirements including PESO, Legal Metrology, Taxation, etc. shall apply to Mobile Dispensers assigned by the Company.

13. SALE, ASSIGNMENT AND TRANSFER

The Franchisee hereby agrees and acknowledges that the Franchisee does not have an authority to sell, assign or transfer the rights and interest granted to it under this Agreement. Franchisee shall not be entitled to sell, assign, sublet, mortgage, charge, or part, or otherwise transfer the JN Fuel's Jerry Cans, his rights, interests, or benefits conferred under this Agreement. Such acts shall be considered void ab-initio.

14. TERM, TERMINATION, RELOCATION AND CONVERSION

14.1 This Agreement may be terminated by the Franchisor on the occurrence of the following events:

14.1.1 On the expiry of the Term.

14.1.2 In the event of breach of the terms and condition of this Agreement aVer serving a defect cure notice for 15 days by Franchisor. A cure period of 15 days will be provided to the Franchisee for rectifying the non-compliance. In case the Franchisee does not rectify such defects within 15 days, then this Agreement shall be terminated immediately upon expiry of 15 days.

14.1.3 In the event of any act or omission by the Franchisee causing damage to the Brand Name and good will of the Franchisor.

14.1.4 In the event of loss of profit or non-performance of Franchisee as per the standards set by the Franchisor.

14.1.5 In the event of non-compliance or non-adherence of the stipulated SOPs or statutory guidelines or compliance measures (as entailed under **Annexure 4**). A cure period of 15 days will be provided to the Franchisee for rectifying the non-compliance. In case the Franchisee does not rectify such defects within 15 days, then this Agreement shall be terminated immediately upon expiry of 15 days.

14.1.6 On the occurrence of any of the following events of default, the Company shall be entitled to terminate this Agreement with immediate effect, in its sole discretion and without prejudice to the rights provided herein and/or under any law or equity, without providing any cure period:

i. Any change in the constitution, change in the management of the Franchisee (whether or not involving a change in the ownership structure) or change in co-ownership or conversion of business or unauthorized direct or indirect assignment of the Franchise without prior written consent of the Franchisor.

ii. Any attachment, mortgage, charge, or lien being levied on the JN Fuel's Jerry Cans by the Franchisee/

iii. In case the Franchisee (i) violates any terms of service, warranties, return, or pricing; (ii) creates any difference in advertising and promotional efforts; (iii) any ßaudulent activity or taking cash without recording it in the books of accounts; (iv) sells fuel which is sourced ßom a different entity and not the Company at the place of JN Fuel's Jerry Cans; and (v) tampers with JN Fuel's Jerry Cans.

iv. If the Franchisee:

a. Fails to conduct uninterrupted business for 15 days continuously;

b. Goes into liquidation/bankruptcy or becomes insolvent;

c. Discharges ßaudulent misconduct and is found to have supplied materially false or misleading information not supporting the Business;

d. Gross Negligence;

e. Persistently defaults in payment of any amounts due to the Franchisor

v. The agreement will terminate due to the non-performance of the clauses mentioned in Clause 14 despite of performance improvement opportunity given.

vi. The Franchisee (if an individual) or its directors or partners (if corporate person) as relevant, convicted by a court for any offence involving moral turpitude.

vii. If the Franchisee (in case of individual or sole proprietorship), is found to be a person of unsound mind or being adjudged as an insolvent or becomes bankrupt.

viii. The Franchisee is not complying with the Company policy on price, staffing, training, promotion, customer service, and/or generally doing any act deed or thing or omitting to do so which is in any way prejudicial to the Company's reputation or business interests.

ix. The Franchisee is convicted or bleads to a felony or other crime or offence that is likely to effect the reputation of the Company or the Business.

x. The Franchisee discloses, duplicates or otherwise uses in an unauthorized manner any portion of Confidential Information. trade secrets, systems or marks (trademark or logo) of the Company.

xi. any action taken or omitted to be taken by the Franchisee or the occurrence of any other event which in the opinion of the Company is prejudicial or detrimental of the Company's

interests. Such opinion of the Company shall be final and binding on the Franchisee.

14.1.7 The Company's decision in case of termination and breach of this Agreement shall be final and binding.

14.2 Effect of Termination to Franchisee

14.2.1 Upon termination of this Agreement for any of the reasons mentioned above the Franchise shall: Not represent in any manner as an Associate/Franchise/Partner of the Brand Name.

14.2.2 Franchisee will not use the Brand name owned by the Franchisor and desist ßom using any mark confusingly or deceptively similar to the trademark, service mark or logo and style of the Franchisor in any manner. Furthermore, the Franchisee will also not use Franchisor's trademark, brand name, Service mark or logo with any prefix or suffix.

14.3 **Conditions for early termination**: The Franchisor shall be entitled for early termination only for:

a. Operational hazards faced by the Franchisor,

b. Assignment to third party, Unforeseen circumstances hampering the business operation at the location including Force Majeure.

15. CONFIDENTIALITY AND NON-DISCLOSURE UNDERTAKING

15.1 The Franchisee undertakes and agrees to regard and preserve as confidential, all Confidential Information of the Franchisor including JN FUEL Technology and sales data, business proposals, contents of this Agreement, books of accounts, etc. which may be obtained by Franchisee ßom any source as a result of this Agreement. In maintaining confidentiality hereunder, the Franchisee agrees that it shall not disclose or make available or divulge to its affiliates, any third party, person, Franchisor or enterprise or reproduce or transmit, or use (directly or indirectly) for its own benefit or of others or otherwise, any Confidential Information of Franchisor.

15.2 The terms and conditions of the present Agreement shall be treated as Confidential Information and neither the execution of this Agreement nor its terms shall not be disclosed or re-produced to any other person by the Franchisee without prior written consent of the Franchisor unless disclosure is required by applicable law or laws of India.

15.3 The Confidentiality, Non-Compete and Non-Disclosure obligations, of the present clause shall continue to apply during the term of this agreement and for the period of 2 years thereaVer.

16. OWNERSHIP

16.1 I-Fuel's Jerry Cans is the property of the Company. The risk of JN Fuel's Jerry Cans shall pass on ßom the Franchisor to the Franchisee upon the delivery of JN Fuel Jerry Cans ßom point of pickup.

16.2 The I-Fuel Jerry Cans shall be sold to the Franchisee, as per the arrangement either mentioned

herein, or as may intimated to them.

16.3 In case of higher sales volume in the Location assigned to the Franchise, both the parties will have to arrive at the mutual decision on below options to cater to the additional business which shall be subject to either to allocate another Mobile Dispenser under a arrangement or to allocate a New Franchisee to cater to the incremental requirement.

17. GOODWILL

The Franchisee undertakes that they will not act or make any omission which directly or indirectly injures, brings into disrepute, ridicules or lessens the public reputation, goodwill or favorable image of the Franchisor, its Business and its Service.

18. COMPLIANCE

18.1 Approval, SOPs, terms and conditions of registrations, process notes, and guidelines ßom relevant Government statutory bodies (such as PESO, Weights & Measures Departments, etc.) is mandatory and compliance of same shall be strictly adhered by Parties.

18.2 Appropriate actions will be taken by the Franchisor in case of any non- compliance or flouting of the prescribed safety norms by the Franchise observed by the Franchisor. Action could be corrective measure or termination depending on the severity of impact duet on on-compliance. In case of termination, penalty of either 100% Security deposit (10 Lacs) or applicable fees as per Government guidelines (whichever is higher) will be levied on the Franchisee by the Franchisor for such violations by Franchise.

18.3 The Franchisee shall support the Franchisor in furnishing any or all the documents for PESO Approval as mentioned in **Annexure No. 4.**

18.4 The Franchisee undertakes and agrees that of transportation of HSD and MS in the I-Fuel's Jerry Cans, particulars of which are given above, shall be in accordance with the provisions of the Petroleum Act,1934, MS and HSD (Regulations and Supply, Distribution and Prevention of Malpractices) Second Amendment Order 2019 notified in Official Gazette by Ministry of Petroleum and Natural Gas on 10th December, 2019 the rules ßamed there under and any other law or rules for the time being in force and such other Applicable Laws (as defined under this Agreement).

18.5 The Franchisee also undertakes that any contravention of the Applicable Laws, and the aforementioned statutes in Clause 19.4 and the rules ßamed thereunder is punishable as per the provisions of Petroleum Act,1934 and MS and HSD (Regulations and Supply, Distribution and Prevention of Malpractices) Second Amendment Order 2019 notified in Official Gazette by Ministry of Petroleum and Natural Gas on 10th December, 2019.

18.6 The Mobile Dispensing Unit shall not be allowed to load for many other sources of fuel, apart ßom the fuel type already defined (HSD) and also will not be allowed to fill ßom any other supply location or other oil Franchisor or COCO, apart ßom the one designated as per OMC declaration and PESO license.

18.7 The Mobile Dispenser shall not be used to supply HSD, Diesel Light, and MS to any unauthorized supply unit, which has not been specified under PESO Guidelines. Any such violation of PESO Guidelines will attract a penalty amounting up to the Security Deposit or the penalty as imposed by Government authority, whichever is higher.

18.8 The Franchisee undertakes that the SOPs for Loading, Refueling and for Dispensing, as stipulated by the competent authority will be adhered to at all times which will be monitored by Franchisor. Any non-adherence will lead to the similar repercussions as stated in point above.

19. INDEMNITY AND LIABILITY

The Franchisee will defend and indemnify the Company and its affiliates and their officers, directors, promoters, and employees ("**Indemnitees**") and hold the Indemnitees harmless ßom and against all losses, damages, penalties, fines, expenses, costs, including but not limited to reasonable attorney's fee:

19.1 asserted directly or indirectly by any third party (including the Franchisee's employee) or entity, in relation to any claims pertaining to the Franchisee's employees, its/his contractors or otherwise related to the employment-related benefits of Franchisee's or his contractor's employees etc.;

19.2 asserted directly or indirectly by any person or entity (including a consumer) to the extent based on operations of the pump, or on the acts or omissions of store personnel, including but not limited to personal injury or death suffered in the premises of operation of fuel pump and/or including but not limited to any act of infidelity or dishonesty by the employees of the Franchisee;

19.3 arising out of actual or alleged false advertising conducted by the Franchisee; arising out of (i) the Franchisee's breach of any term including representation, warranty or covenant in this Agreement; or (i) negligent act or omission, or intentional misconduct on the part of the Franchisee or its agents/contractors.

19.4 Franchisee shall indemnify and hold harmless each other and all of its respective officers, directors, agents and employees ßom and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, penalty, costs, and expenses of whatsoever nature, including attorney's fees and expenses, which either party may suffer as a result of any inßingement or alleged inßingement of any statutory laws, approvals, PESO norms, Fiscal laws, patent, utility model, registered design, trademark, loss or disruptions in other businesses, copyright or other intellectual property right registered or otherwise existing at the date of this agreement arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided by either party.

19.5 Upon termination of this Agreement, in its entirety, the Franchisee shall not have any right to receive a severance payment or other compensation ßom the Company in particular: (i) Company will have no liability for any expense incurred by the Franchisee except as provided herein; (ii) the Franchisee will not be entitled to compensation for the development of goodwill in Territory; and (iii) the Company is not obligated to purchase any Franchisee's

invested asset for discharge of services as entailed herein.

20. ENTIRE AGREEMENT

This Agreement sets for the entire Agreement and understanding between the parties as to the subject-matter of this Agreement and amalgamate shall prior discussions between them and neither of the parties shall be bound by any conditions, definitions, warranties or representations with respect to the subject matter of this Agreement of the other than as expressly provided in this Agreement as duly set forth.

21. FORCE MAJEURE

21.1 Except as provided herein, no party shall be liable to the other for any delay in the performance or any non-performance of any of its obligations under the present Agreement (and shall not be liable for any loss or damages caused thereby),where the same is occasioned by any cause, which is beyond control of the parties to the present Agreement including but not limited to an Act of God; such as flood, lightning, earthquake, fire, explosion, inundation, sabotage, equipment failure as a result of an event of Force Majeure, civil disturbance, epidemics, pandemic, riot, war, illegal strikes involving the employees of Franchisor, changes in govt. policy with respect to HSD, Diesel Light, and MS delivery, changes in PESO guidelines, changes in ßanchisor HSD, Diesel Light, and MS delivery license terms and conditions and any clause or happening which prohibits performance of the obligations hereunder of any Party or which is beyond its control.

21.2 In event of occurrence of any event as mentioned in this Article, the Party claiming Force Majeure shall use all reasonable efforts to continue to partially perform its obligations hereunder, as far as possible and to mitigate the effect of such event of Force Majeure expeditiously and diligently

22. NOTICES

22.1 Any notice, request or other communication required to be given under this Agreement must be in writing and served to the other party by registered post or through an email, addressed to the parties at their respective addresses as mentioned above in this agreement.

22.2 Any notice or other communication as above shall be deemed given and received on the date of delivery or on the 7th business day following the day of mailing of the same by prepaid registered mail or by courier delivery service with return receipt requested to the party to be notified at the addresses set forth.

23. NON-COMPETITION, NON-SOLICITATION, AND NON-DISPARAGEMENT UNDERTAKING

23.1 The Company has the right to require the Franchisee and any holder of a legal or beneficial interest in the Franchisee, and any officer, director, executive and manager or member of the professional staff of the Franchisee to not engage in the same or similar business as that of the Company that directly or indirectly competes with the Company's Business during the Term of this Agreement and for period of 2(Two) years ßom the

termination of this Agreement.

23.2 The Franchisee acknowledges that, the restrictive covenants contained in this section are essential elements of this Agreement and that without their inclusion the Company would not have entered into this Agreement. The Franchisee acknowledges that each of the terms set forth herein, including the restrictive covenants, is fair and reasonable and is reasonably required for the protection of the Company, the SOPs, Confidential Information and the operational efficiencies.

23.3 The Franchisee acknowledges that, the restrictive covenants contained in this section are fair and reasonable and are justifiably required for purposes including, but not limited to, the following: (a) to protect the intellectual property (trademarks, technologies, technical guidance, SOPs, trade secrets, the systems established) and Confidential Information of the Company as may be prescribed ßom time to time; (b) to induce the Company to grant a Franchise to the Franchisee; and (c) to protect the Company against its costs, if any, in training the Franchisee and its officers, directors, executives, professional staff.

23.4 Except as otherwise approved in writing by the Company, neither the Franchisee, nor any holder of a legal or beneficial interest in the Franchisee (including any relative of the Franchisee), nor any officer, director, executive, manager or member of the professional staff of the Franchisee, shall, for a period of 2 (two) years aVer the expiration or termination of this Agreement, regardless of the cause of termination, either directly or indirectly, for themselves or through, on behalf of or in conjunction with, any person, persons, partnership, proprietorship concern, corporation, limited liability company or other business entity solicit or otherwise attempt to induce or influence any customer, employee or other business associate of the Company to terminate or modify his/her/its business relationship with the Company or o compete against the Company.

23.5 Thus, the Franchisee hereby agrees and acknowledges that during the term of this Agreement and 2 (two) years aVer its expiry/termination, the Franchisee shall not: -

I. Carry on any other business conflicting the interest of the agreed business model in this agreement.

II. Entice employees/agents ßom the Franchisor or other Franchises.

III. Use or disclose confidential information for any purpose other than a purpose set out in the Agreement.

IV. Transfer the ßanchisee to any other person.

23.6 **Non-Disparagement Clause**: The Franchisee is hereby prohibited ßom making any negative statements, remarks, or representations, about Franchisor. The Franchisee agrees and covenants that the Franchisee shall not at any time make, publish, or communicate to any person or entity or in any public forum any defamatory or disparaging remarks, comments, or statements concerning the Company or its Businesses, or any of its employees, officers, promoter, and existing and prospective customers, suppliers, investors and other associated third parties. This Clause 24.6 does not, in any way, restrict or impede the Franchisee ßom exercising protected rights to the extent that such rights cannot be waived by Agreement or ßom complying with any applicable law or regulation or a valid order of a court of competent jurisdiction or an authorized government agency, provided that such compliance does not exceed that required by the law, regulation, or

order. The Franchisee shall promptly provide written notice of any such order to the Franchisor.

23.7 Any breach of this clause 24, shall result in liquidated damages of INR 5,00,000/-.

24. GOVERNING LAW AND SETTLEMENT OF DISPUTES

This Agreement and the rights and obligations of the parties hereunder shall be construed and interpreted in accordance with Indian substantive and procedural law, applicable to Agreements made and to be performed entirely therein.

24.1 The Parties shall attempt in good faith to resolve any dispute, difference or claim arising out of or in relation to this Agreement through mutual discussion. In case it is not resolved within thirty (30) days ßom receipt of the written notice (setting out the dispute or claim) by the other party, the complaining party may issue a notice of reference, invoking settlement of such dispute through Arbitration.

24.2 All disputes between parties shall be subject to clause 25.3 below, be subject to exclusive jurisdiction of the courts at Guwahati, Assam only.

24.3 **Arbitration:** Any and all disputes ("**Disputes**") arising out of or in relation to or in connection with this Agreement between the Parties or relating to the performance or non-performance of the rights and obligations set forth herein or the breach, termination, invalidity or interpretation thereof shall be referred for arbitration in Guwahati, Assam India in accordance with the terms of Indian Arbitration and Conciliation Act, 1996 or any amendments thereof. The place of arbitration shall be Guwahati, Assam. The language used in the arbitral proceedings shall be English. Arbitration shall be conducted by a sole arbitrator, who shall be appointed with the mutual consent of both parties. The arbitral award shall be in writing and shall be final and binding on each party and shall been enforceable in any court of competent jurisdiction. In case the arbitration discussions fail to reach an agreement/consensus and proceeds to court, the jurisdiction will be in the courts at Guwahati, Assam only.

25. RECORDS AND DOCUMENTS

The Franchisee shall maintain and retain all books and records related to the Franchised Business including but not limited to purchase orders, invoices, bills, payroll records, tax returns, bank statements, cancelled cheques, deposit receipts, fuel related documents, approvals, registrations, police verification documents (if any), and other financial records designated by the Company or required by applicable law in the form and manner specified by the Company ßom time to time including but not limited to the data protection laws promogulated ßom time to time. The Franchisee shall be fully responsible to correctly use the revenue payment types/conditions as given in the Company Point of Sale “POS" systems given or installed by the Company ßom time to time and appoint sufficient staff to perform daily intimal checks on the records, maintained at the showroom. Any manipulation or workarounds will be viewed as a deviation by the Franchisee.

26. Relationship

None of the Parties shall have any right, power or authority to enter into any agreement for

or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose. No Party has the power or the right to bind, commit or pledge the credit of any other Party.

27. Entire Agreement

This Agreement and other documents referred to herein constitutes the whole agreement between the Parties relating to the subject matter hereof and supersedes any prior
agreements or understandings relating to such subject matter, including any memorandum of understanding, term sheets or letters of intent.

28. Severability

If any provision of this Agreement is invalid, unenforceable or prohibited by Applicable Law, this Agreement shall be considered divisible as to such provision and such provision shall be inoperative and shall not be part of the consideration moving ßom either Party hereto to the other, and the remainder of this Agreement shall be valid, binding and of like effect as though such provision was not included herein. In such event, the Parties undertake to endeavour in
good faith to replace the invalid, illegal or unenforceable provision by a valid, legal and enforceable provision which contains, as nearly as possible, the rights and obligations contained in the provision to be replaced and puts the relevant Party in the same economic and legal position as such Party had been in pursuant to the previous provision.

29. Expenses

Any stamp duty costs for the transactions contemplated hereunder shall be borne by the Seller and the Purchaser equally. All Taxes will be paid by the Party, who is obligated to pay the Tax under Applicable Laws, without any recovery or reimbursement ßom the other Party. Except as set forth, each Party shall be responsible for bearing their respective costs and expenses
incurred in connection with the Franchise Transaction.

30. Assignment

Except as otherwise specifically provided in this Agreement, neither Party shall assign their rights hereunder without the prior written consent of the other Party.

31. No Presumption

The Parties hereto have participated jointly in the negotiation and draVing of this Agreement. In the event any ambiguity or question of intent or interpretation arises, this

Agreement shall be construed as if draVed jointly by the Parties hereto and no presumption or burden of proof shall arise favouring or disfavouring any Party by virtue of the authorship of any of the provisions of this Agreement.

32. Rights of Third Parties

Nothing expressed or implied in this Agreement is intended or shall be construed to confer upon or give any Person, other than the Parties hereto any rights or remedies under or by reason of this Agreement or any transaction contemplated by this Agreement.

33. Time is of the essence

Each date, time or period referred to in this Agreement is of the essence. If the Parties agree in writing to vary a date, time or period, the varied date, time or period is of the essence.

[THIS SPACE IS LEFT INTENTIONALLY]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed on the Execution Date.

For and on behalf of **JN FUEL PRIVATE LIMITED**

Name:
Designation:

For and on behalf of **FRANCHISEE**

Name:
Cell:

Witnesses

Name:	**Name:**
Address:	**Address:**
Cell:	**Cell:**

Annexure-1

Definitions

1. **'**OMC' means Oil Marketing Companies who are in the business of marketing & selling of Petroleum & Oil products. It denotes the Top 3 OMCs in India currently which are Indian Oil Corporation (IOCL), Hindustan Petroleum Corporation Limited (HPCL), and Bharat Petroleum Corporation Limited (BPCL).

2. 'PESO' means Petroleum and Explosives Safety Organization having offices across India. (www.peso.gov.in). 'PESO Licenses' means the licenses granted to Company with respect to operation of Mobile Dispenser, copies of which have been furnished to the Company prior to the Effective Date. 'Identified Customers' means the customer as identified in the list provided and forwarded by the Company to PESO, as per PESO requirement as amended by PESO ßom time to time. 'Refueling Site' in respect of an Identified Customer shall mean the site, which is identified by and forwarded by the Company to PESO, as may be amended ßom time to time by the Company aVer intimation to PESO, by the Company.

3. 'Effective Date' means the date of mentioned in the preamble of this Agreement.

4. 'Supply Location' means the area of the Company's Supply Location / PESO approved layout (premises) of the Retail Outlet ßom where the Company has taken delivery of HSD, Diesel Light, and MS in Mobile Dispenser/Jerry Cans.

5. 'Dispensing Unit' in respect of a Mobile Dispenser means the delivery system, detachable or otherwise, forming part of the Mobile Dispenser. 'Mobile Dispenser' means the I-Fuel's Jerry Cans having license ßom PESO in Form XIX which shall comprise of the chassis, storage tank and Dispensing Unit.

6. 'HSD' means High Speed Fuel conforming to is specification ISO1460-2005.

7. 'The Company Representatives' means persons authorized, ßom time to time, by the Company for the purposes of this Agreement.

8. 'SOP' or 'Standard Operating Procedures' means procedures specified by Company for loading ßom Company's Supply Locations which are as specified by PESO for loading HSD into Mobile Dispenser at Retail Outlets and for dispensing HSD, Diesel Light, and MS through Mobile Dispense rate fueling sites of Identified customers.

9. 'RTO or Regional Transport Office' means Government organization which maintains a database of vehicles and drivers for various Indian states and union territories, offers personalized registrations and maintains the collection of excise duty such as road tax. Fitness Check (FC), Insurance check and pollution test of vehicles are also conducted by the Regional Transport Office.

10. 'RO or Retail Outlet' means the Company Dealer's outlet for selling the Petroleum products equipped with the PESO approved loading facility of HSD, Diesel Light,

and MS for loading the Mobile Dispenser. 'RSP or Retail Selling Price' in respect of HSD, Diesel Light, and MS means the rate or selling price specified by the Company for its Retail Outlets or by any authority under law ßom time to time, or ßom day to day.

11. 'Taxes and Duties' means any taxes, charges, levies, duties, fees and penalties, thereon including but not limited to Goods and Services Tax. 'Crew' means the driver and helper in respect of the Mobile Dispenser. "DDD Reseller" means "Person" duly authorized by the Company in the meaning and scope of MS, Diesel Light and HSD (Regulation of Supply, Distribution and Prevention of Malpractices) Second Amendment Order 2019 notified in Official Gazette by Ministry of Petroleum and Natural Gas on 10th December, 2019.

Annexure-3 & 4

Invoicing Process (Tentative)

Scenario	Description
Pre- Payment/ Working capital	1. The Franchisee will be pre-paying RSP amount less (Rs xxx) for procuring the Fuel for the Fuel stock. 2. JN FUEL will issue a receipt for the pre-paid amount. 3. JN FUEL will initiate the filling process to the OMC. 4. The Franchise will Fill the stock ßom their JN FUEL identified RO/SL. 5. The Franchise will deliver the Stock to the customer based on the order quantity. 6. The Customer will pay to JN FUEL for the Order Quantity as per RSP + convenience fee (if any). 7. The customer will pay Price of Fuel's Jerry Cans(GST extra). 8. From the time the customer has paid that transaction amount as mentioned in (1) will be settled within 2 working days From JN FUEL to the Franchisee.

Franchise Commission Invoice to JN FUEL	The Reconciliation process of Sale quantity and commission to completed by 3rd working day of every month. The Invoicing to be completed by Franchise by 5th working day of every month. The payment will be released by Franchisor by 10th working day of every month deducting the T

ANNEXURE -4

Non-Adherence of below SOP Policies Leading to Termination:

1. The loading is allowed only through the loading facility approved by PESO and not through the nozzle of the Dispensing unit in the Retail outlet.
2. These are prescribed by the weights & Measures department on the Dispensing unit and should not be tampered.
3. Refueling for customers should be done only in an enclosed site for heavy vehicles, Machinery, stationary equipment's.
4. The mobile dispenser should be serviced only at the authorized service centers approved by the Franchisor.
5. The vehicle should be parked only in the PESO approved parking spot and not in a crowded public space.
6. Drinking, Smoking or any other malpractices near the JN Fuel's Jerry Cans is be prohibit
7. Any violation by the Franchisee or its employees of the guidelines mentioned herein, shall result in immediate liquidated damages along with other remedies as mentioned in Clause 14 of the Agreement.
8. The SOP document shall be independently supplied to the Franchisee or shall be uploaded at the JN Fuel platform to be followed by the Franchisee. In case of non-adherence of the SOP, JN Fuel shall be entitled to terminate this Agreement without any liability thereto.

ANNEXURE -5

PESO SOP:

1. Mobile dispenser accepted for loading shall conform to all updated regulations of Petroleum Rules and should have valid PESO license.
2. Mobile dispenser either be owned and operated by OMC or an operator authorised by OMC and shall have valid agreement/ Contract with OMC for distribution of petroleum product.
3. Mobile dispenser operator shall carry a valid calibration license for tank as well as metering unit/ equipment installed for the purpose of refuelling.
4. Driver of the Mobile dispenser shall have HAZCHEM certificate for handling of Hazardous product through recognised training institute
5. Mobile dispenser shall be refuelled at Retail Outlets/Storage Point having valid license (XIV/XV) for refuelling mobile dispenser &shall be parked at specified place for fuelling at Retail out/ Gantry in drive-out position on horizontal platform.
6. Before start of loading operation, a 9/10 KG DCP Fire extinguisher shall be placed in front of mobile dispenser so that filling faucet can be easily accessed in case of emergency.
7. Place the board of "Tank Lorry under Filling "in front of the Mobile Dispenser.
8. The engine of the mobile dispenser shall be switched off during loading operation.
9. Hand brake shall be applied during decanting
10. Mobile dispenser shall be parked in neutral gear during Loading.
11. Master switch of the dispensers shall be switched off during loading.
12. Tyres shall be scotched with wooden wedges.
13. Mobile dispensers shall be bonded with the Earth Pit / Gantry structure by means of a flexible electrically continuous earthing wire.
14. Filling hose pipe / loading arm of the product shall be properly secured with the Mobile dispenser.
15. No simultaneous operation of tank lorry decantation and mobile dispenser loading will be undertaken at the Retail Outlet.

16. During loading, both the driver & helper shall be present so that the vehicle can be removed instantly in the event of any emergency.

17. Earthing / bonding connections shall not be removed till the tank lorry is ready to move out from the bay so that adequate time (minimum 2 minutes) is given for dissipation of electrical charges generated during filling.

18. Ensure that there is no leakage from any part of the loaded tank lorry.

19. Ensure necessary sealing/locking is in place before dispatch of the Mobile dispenser.

20. After completion of mobile dispenser loading / Billing /record keeping and stock reconciliation mobile dispenser shall be allowed to leave from Retail outlet for refuelling.

21. Jet sensors are provided to prevent overfilling in case of bottom loading.

22. Flow meter having preset mode quantity of petroleum product is only used for loading browser.

PESO Parking Guidelines

SOP for parking of Fuel's Jerry Cans for Door-to-Door Delivery of Fuel For Petroleum Class B High Speed Fuel only

- The Fuel's Jerry Can shall not be parked on a public road or any congested area or at a place within 9 meters of any source of fire.
- Petroleum carried in the Fuel's Jerry Can shall not be loaded, unloaded, transferred into any Container or into the fuel tank of any motor conveyance or any internal combustion engine or storage tank within the parking space.
- The approach to the stand-alone parking facility for Fuel's Jerry Can should ensure unobstructed entry and exit of Fuel's Jerry Can. (Entry and exit may be same).
- Stand-alone parking facility should have easy access to firefighting equipment.
- The parking area shall be open to the sky, and there shall be no overhead electric cable or high-tension electric line above the parking facility, and it shall be on level ground.
- The stand-alone parking shall be of a minimum 10 m X 10 m area for one Fuel's
- Jerry cans only.
- In case of more than one Fuel's Jerry Can to be parked then each Fuel's Jerry Can shall observe a 4.5-meter clear safety distance all around. The Distance shall be measured ßom the centre of the parking platform for each Fuel's Jerry Can.
- The parking facility shall be segregated ßom other facilities and protected works by providing fencing of total height1.2 meters
- Parking area shall have sufficient illumination along the fence.

- No person shall smoke and no matches, fire, lights or articles or substances capable of causing ignition of petroleum shall be allowed at any time in proximity to Fuel's Jerry Can or in the parking facility.
- Once the vehicle is parked, the driver shall ensure that the master switch shall be disengaged/switched off and the wheels of the vehicle shall be secured by efficient brakes or by scotching.
- It shall be the responsibility of the Fuel's Jerry Can owner to have the legal and physical 12 Possession of the parking area for parking of Fuel's Jerry Cans licensed in Form XIX.
- One number of 9 Kgs DCP fire extinguisher and 2nos. of buckets with shed shall be provided in the parking facility at an accessible location.
- The premises shall be manned and attended at all times.
- The premises shall have a notice board displayed at a prominent place mentioning
- "Restricted Area" Form XIX license number, owner's name his contact details, Contact
- Number of nearest Police Station, Fire Station, Hospital & Ambulance.
- Documents Required for PESO Approval:
  - Undertaking From the owner the Re fueler with respect to area of operation
  - Letter From owner along with list of customer and address
  - Undertaking specifying the unique serial Number of the safety fitting CCE Approval of safety fitting and ex electrical apparatus installed on the vehicle–Fabrication Certificate.
  - Franchise's PAN Card
  - Attested copy of calibration certificate
  - Attested copy of RC Book of vehicle
  - Copy of agreement between the OMC the service station dealer and the owner of the Refueler for the loading of petroleum class B in the concern service station under PR 2000 and refueling of HSD, Diesel Light, and MS to the customer premises.
  - Copy of CCE approved drawing and Other Drawing Plan
  - Copy of premises wherein the vehicle to be loaded
  - Copy of site plan or layout of operation of vehicle
  - Declaration that the subject vehicle is not involved in any litigation court case, Police case etc.
  - Fabrication certificate issued by fabricator online
  - List & type of machinery, vehicles to be refueled
  - Online application Form VII Part A
  - Online certificate issued by competent Form VII Part B
  - Photograph showing, entire Re fueler, registration number, Engine Number, chassis

number, safety fitting electrical fitting on the vehicle.

- Safety Fitting Certificate signed by Competent person
- SOP for loading & decantation of refueler
- Tank test certificate issued by competent person
- Valid copy of license Form XIV or Form XV
- Any other information and details required by authorities ßom time to time.

Note: CUSTOMER INACTIVITY & REACTIVATION POLICY

If a customer does not place or purchase any fuel order from JN Fuel Private Limited continuously for a period of three (3) months, JN Fuel Private Limited reserves the right to terminate/deactivate the customer's active status.

If the customer wishes to resume fuel orders after such termination/deactivation, the customer shall be required to pay a reactivation penalty of ₹10,000 (Rupees Ten Thousand Only) before placing a new fuel order.

JN Fuel Private Limited reserves the right to review and approve the customer's reactivation subject to its applicable terms and conditions.

ANNEXURE -6

COMMISSION SLABS

SALES SLAB (IN LAKHS)	COMMISSION RATE (IN PAISE)
0 - 1	0.40
1 - 5	0.75
5 - 10	1.00
10 above	1.25